

		which require the dismissal of this entire action.” Since that motion is set for 8/11/2026, this motion is continued to 8/11/26. Defendant/Responding Party to give notice.
109	Dorado vs. General Motors LLC 24-01406222	Motion for Attorney Fees Plaintiff Gilberto Dorado seeks an Order awarding his attorneys’ fees in the amount of (1) \$39,075.25, and (2) an additional \$3,487.50 for Plaintiff’s counsel to review Defendant’s Opposition, draft the Reply brief and supplemental declaration, and prepare for and attend the hearing on this Motion. In total Plaintiff requests the Court order Defendant to pay attorney fees in the amount of \$42,562.75. A prevailing buyer in an action under the Song-Beverly Act shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action. (Civ. Code, § 1794, subd. (d).) The plain wording of section 1794, subdivision (d) requires the trial court to base the prevailing buyer's attorney fee award upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged. (Hanna v. Mercedes-Benz USA, LLC (2019) 36 Cal.App.5th 493, 506.) Civil Code section 1794 requires the trial court to make an initial determination of the actual time expended, and then to ascertain whether under all the circumstances of the case the amount of actual time expended and the monetary charge being made for the time expended are reasonable. These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved. If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount. A prevailing buyer has the burden of showing that the fees

		incurred were allowable, were reasonably necessary to the conduct of the litigation, and were reasonable in amount. (Hanna, supra, 36 Cal.App.5th at p. 507) Notably, on a motion for attorney’s fees against Hyundai out of Los Angeles, the trial Court judge was affirmed after finding the hourly rates for each of the attorneys were not reasonable. [It reduced Altman's rate from \$650 to \$500 per hour, and Mikhov's rate from \$500 to \$400 per hour. The court fixed each of the associate's rates at \$300 per hour, thus reducing one associate's rate from \$350 to \$300 per hour, the second from \$375 to \$300 per hour, and the third from \$450 to \$300 per hour. The court granted the full amount of fees billed by the paralegal from the Altman Law Group. The result was a total lodestar calculation of \$73,864, approximately 42.2 percent less than the requested lodestar award of \$127,792.50.] In affirming, the Court of Appeal indicated in <i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 32 as modified (Oct. 11, 2019) In making its calculation [of a reasonable hourly rate], the court may rely on its own knowledge and familiarity with the legal market, as well as the experience, skill, and reputation of the attorney requesting fees [citation], the difficulty or complexity of the litigation to which that skill was applied [citations], and affidavits from other attorneys regarding prevailing fees in the community and rate determinations in other cases.” (569 East, supra, 6 Cal.App.5th at p. 437, 212 Cal.Rptr.3d 304; see <i>Mountjoy</i>, supra, 245 Cal.App.4th at p. 272, 199 Cal.Rptr.3d 495 [“ ‘ “a reasonable hourly rate is the product of a multiplicity of factors [including] the level of skill necessary, time limitations, the amount to be obtained in the litigation, the attorney's reputation, and the undesirability of the case” ’ ”].) [Morris v. Hyundai Motor America (2019) 41 Cal.App.5th 24, 41, as modified (Oct. 11, 2019)] Also, in <i>Mikhaeilpoor v. BMW of North America, LLC</i> (2020) 48 Cal.App.5th 240, the Court of Appeal affirmed the trial Court’s reduction of the attorney’s rate to \$350 an hour where there were multiple timekeepers at differing rates. This case appears to give this Court authority to reduce the fees to a reasonable hourly rate. <u>Relevant History</u>
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	On or about February 27, 2021, Plaintiff purchased the 2021 Chevrolet Silverado manufactured by Defendant. (Complaint¶6.) On June 14, 2024, Plaintiff filed the Complaint herein for: (1) VIOLATION OF SUBDIVISION (d) OF CIVIL CODE SECTION 1793.2 (2) VIOLATION OF SUBDIVISION (b) OF CIVIL CODE SECTION 1793.2 (3) VIOLATION OF SUBDIVISION (a)(3) OF CIVIL CODE SECTION 1793.2 (4) BREACH OF EXPRESS WRITTEN WARRANTY CIVIL CODE SECTION 1791.2 SUBDIVISION (a); SECTION 1794 (5) BREACH OF THE IMPLIED WARRANTY OF MERCHANTABILITY CIVIL CODE SECTION 1791.1; SECTION 1794 On July 19, 2024, Defendant GENERAL MOTORS LLC filed its Answer to the Complaint. (ROA 11) On November 19, 2024, the trial was set for November 24, 2025. (ROA 23.) On April 8, 2025, Plaintiff filed a MOTION AND MOTION TO COMPEL FURTHER RESPONSES AND DOCUMENTS TO PLAINTIFF’S REQUEST FOR PRODUCTION OF DOCUMENTS, SET NO. ONE. (ROA 30) On July 15, 2025, that Motion was denied in part and granted in part. (ROA 45) On October 8, 2025, Plaintiff filed a PLAINTIFF’S NOTICE OF MOTION AND MOTION TO COMPEL COMPLIANCE WITH THE COURT’S JULY 15, 2025, DISCOVERY ORDER (ROA 55) On October 17, 2025, Plaintiff filed a MOTION TO COMPEL THE DEPOSITION OF DEFENDANT’S PERSON MOST QUALIFIED (ROA 62) On October 22, 2025, per ex parte order, the jury trial was continued to 4/20/2026. (ROA 76) On October 21, 2025, Defendant served a 998. (Decl. of Gruszecki¶13.) On November 24, 2025, the case settled. (Decl. of Jiang¶26, Ex. 1.) On December 9, 2025, Plaintiff withdrew the pending discovery motions. (ROAS 85, 86) Two months after settling, on January 29, 2026, the Notice of Settlement was filed. (ROA 96) On February 13, 2026, Defendant filed a Motion to Tax Costs, which was denied on May 5, 2026.
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	Five months after the case settled, on April 24, 2024, this Motion was filed, which is on calendar for July 21, 2026. (ROA 117) In sum, Plaintiff requests \$42,562.75 in fees for a case which involved a templated complaint, form discovery, standard cut and paste meet and confer letters, one discovery motion which was ruled upon (with mixed results), two discovery motions which were withdrawn, a Motion to Tax Costs, and this motion. Notably, no motions were filed to attack the pleadings, no depositions took place, and no vehicle inspection took place. And indeed, this motion is substantially similar to fees motions in other cases and is rather recycled. (Decl. of Gruszecki ¶15) That is, there was absolutely nothing complex about this garden variety lemon law case. Rather, the discovery propounded, motions filed (and never heard), and result obtained, all appear very characteristic of the lemon law litigation this Court has encountered. <u>Lodestar</u> Civil Code section 1794, subdivision (d) requires the attorney fees to be based on “actual time expended” and to have been “reasonably incurred.” In <i>Robertson v. Fleetwood Travel Trailers of California, Inc.</i> (2006) 144 Cal.App.4th 785, 818–819, 820, the court concluded, “the statutory language of section 1794, subdivision (d), is reasonably compatible with a lodestar adjustment method of calculating attorney fees” because “the lodestar adjustment method is based on actual, reasonable attorney time expended as the objective starting point of the analysis [citation], it is compatible with this statutory provision.” The court reasoned that the lodestar method is applicable to calculating attorney fees under section 1794, subdivision (d) because “the lodestar adjustment method is the prevailing rule for calculation of statutory attorney fees unless the statute expressly indicates a contrary intent, and no such contrary intent is apparent.” (Id. at 821; <i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 997.) The lodestar adjustment method requires the trial court first to determine a lodestar figure based on actual time spent and reasonable hourly compensation for each attorney. (<i>Robertson</i>, 144 Cal.App.4th at 819, citing <i>Serrano v. Priest</i> (1977) 20 Cal.3d 25, 48–49.) For Song–Beverly Consumer Warranty Act claims, “[a] prevailing buyer has the burden of ‘showing that the fees
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	incurred were “allowable,” were “reasonably necessary to the conduct of the litigation,” and were “reasonable in amount.” (Nightingale v. Hyundai Motor America (1994) 31 Cal.App.4th 99, 104; Doppes, 174 Cal.App.4th at 998.) <u>Hourly Rate</u> “The reasonable hourly rate is that prevailing in the community for similar work...The relevant ‘community’ is that where the court is located. (citations omitted). [Altavion, Inc. v. Konica Minolta Systems Laboratory, Inc. (2014) 226 Cal.App.4th 26, 71–72.] Plaintiff’s prosecution team consisted of three attorneys and one paralegal: 1. Nancy Zhang, former Senior Partner - \$515-540.00 (admitted 2013) 2. Vanessa J. Oliva, Partner - \$530.00 (admitted 2016) 3. Corinna Jiang, Associate - \$430-465.00 (admitted 2019) 4. Paralegal David Gomez \$210-215 per hour. (employed since 2021) Given the lack of complexity in this case, the Court deems these rates generally too high. Furthermore, most of the evidence in support of the rates is from outside Orange County. (Decl. of Jiang¶¶35-38) The Court will allow the following: 1. Nancy Zhang: \$500 an hour 2. Vanessa J. Oliva: \$500 an hour 3. Corinna Jiang: \$430-465 an hour 4. Paralegal David Gomez: \$210-\$215 an hour <u>Number of Hours</u> Plaintiff’s attorneys spent 96.25 hours on this case. (Decl. of Jiang¶41), and anticipate 7.5 more hours for reviewing opp, drafting reply and attending hearing. Defendant’s primary objection is the work performed by Plaintiff’s attorneys was templated; and thus inflated. (See Opp pages 5-10) The Court agrees with the following: · Templated Discovery Responses (reduction 5.0 hours) · Templated Discovery Requests (reduction 5.5 hours) · Templated Meet and Confer (reduction 1.6 hours0 · Templated Motion to Compel Compliance (reduction 1.9 hours) · Motion to Compel Deposition (never heard) and Ex Parte (reduction 4.7 hours)
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		· Second Templated Meet and Confer (reduction 3.6 hours) · Template Fee Motion (reduction 1.2 hours) Plaintiff is ordered to provide a proposed Order which takes the above reductions in rates and time into consideration and makes the calculations accordingly. Defendant has 5 days to submit any objection thereto.
110	Kerber vs. FCA US LLC 25-01471116	Motion for Attorney Fees Plaintiff Danielle Kerber (“Plaintiff”) moves for an order granting Plaintiff attorney fees against defendant FCA US LLC (“Defendant”) in the amount of \$19,772.50 plus \$972.01 in costs. To determine the appropriate fee award under Civil Code section 1794, the Court applies the lodestar method. Under the lodestar method, the base amount is calculated from a compilation of time reasonably spent and reasonable hourly compensation of each attorney. (Serrano v. Priest (1977) 20 Cal.3d 25, 48.) Defendant does not challenge the requested costs. As to the lodestar for attorney’s fees, Defendant argues that the number of hours expended by Plaintiff’s counsel on certain tasks is excessive. The Court agrees that certain entries reflect an excessive number of hours spent for the related tasks and that the hours should accordingly be reduced as follows: · 1.3 hours by Mr. Urner on 3/27/25 for reviewing file and documents and analyzing legal claims in preparation for drafting the complaint is excessive and unreasonable in this straightforward SBA action and should be reduced to 0.5 hours (a total reduction of \$420.00); · 2.3 hours by Mr. Acosta on 4/5/25 for researching recalls and technical service bulletins is excessive and